



Cuvva short term motor insurance

Welcome

Thank **you** for choosing to insure **your vehicle** through **Cuvva**. **We** want to give **you** every reason to feel satisfied with **your policy** and **we** aim to provide the best cover and claims service for all of **our** policyholders.

This document together with **your schedule, certificate of motor insurance, statement of fact** and the information **you** provided to **us** in **your** application form the contract between **you** and **us** (**your policy**). It is important that **you** take time to read and understand them and ensure that **you** have the cover **you** need. **Your policy** gives useful information on how to make a claim and what **you** can do if **you** are unhappy with **our** service.

This **policy** meets the needs and demands of someone who wants to insure their vehicle against loss or damage and for injury or damage caused by it.

Insurer information

The benefits of this **policy** are underwritten by Wakam.

Wakam UK Limited is a company registered in England and Wales with company number 14778827, having its registered office at 18th & 19th Floors 100 Bishopsgate, London, United Kingdom, EC2N 4AG. Authorised by the Prudential Regulation Authority and regulated by the Financial Conduct Authority and the Prudential Regulation Authority under Firm Reference Number 995565.

The following company acts as administrators of the **policy** on behalf of Wakam and will be **your** primary point of contact in relation to the **policy**:

Cuvva Limited is a company registered in England and Wales with company number 08907985, having its registered address at 4th Floor, Old Sessions House, 23 Clerkenwell Green, London, EC1R 0NA. Cuvva Limited is authorised and regulated by the Financial Conduct Authority. More details on Cuvva can be found on the Financial Services Register (register.fca.org.uk) under FCA registration number 690273.

Your motor insurance policy

This **policy** is a legally binding contract between **you** and **us**.

The contract is based upon the information **you** provided to **us** in **your** application and shown on **your statement of fact**. If any of the information contained therein is incorrect **you** must advise **us** or **Cuvva** immediately.

Information you have given us

Under the terms of the Consumer Insurance (Disclosure and Representations) Act 2012, it is **your** responsibility to take reasonable care to provide **us** with complete and accurate information when **you** take out **your policy** and throughout the life of **your policy**. In deciding to accept this **policy** and in setting the terms and premium, **we** have relied on the information **you** have given us. **You** must take care when answering questions **we** ask by ensuring that all information provided is accurate and complete.

It is essential that **you** tell **us** as soon as reasonably possible about changes which may influence **our** acceptance or assessment of the risk. Failure to notify **us** could mean that the **policy** may not operate fully and could result in part or all of a claim being refused. Such changes could include the following:

- accidents (whether your fault or not) or **thefts** (of or from a vehicle) whether covered by this **policy** or not involving **you** or anybody else covered by this **policy**
- **you** or anybody else covered by this policy being convicted of a motoring or a non-motoring offence or being charged with or being notified of an intention to prosecute

- a change to **your** address or where **your vehicle** is usually kept overnight
- the discovery of a medical condition for which **you** or anybody else covered by this **policy** is required to notify DVLA
- a change to the make and model of **your vehicle** or what **your vehicle** is used for
- a change to **your** occupation (full or part time) or anybody else covered by this **policy**
- a change to who will drive **your vehicle**
- the vehicle is modified from the original factory specification
- the vehicle is used for anything other than social, domestic, pleasure, commuting and, if applicable, business purposes of the policyholder
- if **you** or any driver has had a policy cancelled or refused by another insurer.

This is not an exhaustive list so if **you** are in any doubt about whether or not facts may need to be considered **you** should disclose them to **us**.

We have agreed to insure **you** under the terms, conditions and exceptions of this **policy** or any **endorsement** which may show on **your schedule**; and **you** must have paid the premium for this contract to be valid.

Please read this document, **certificate of motor insurance** and **schedule** together, to ensure they give **you** the cover **you** want. This **policy** is sold on a non-advised basis. **You** should ensure it does meet your demands and needs.

How to claim

If **your** vehicle is involved in an **accident** or **you** need to make a claim under this **policy**, please contact **us** as soon as reasonably possible using **our** Claims helpline below.

Whatever the claim, **you** will have to pay the corresponding **excess**.

Claims helpline

020 3828 7381

In order to ensure **we** deal with **your** claim efficiently, **you** will need to provide **us** with as much information as possible including:

- **your** policy number - this is shown on **your certificate of motor insurance**;
- date, time, location and circumstances of the incident;
- details of any other people involved in the incident - where possible obtain name and contact details of all those concerned;
- names and contact details of any witnesses to the incident;
- details of any injuries to any person involved in the incident.

If **your vehicle** has been stolen, before calling **us**, **you** should:

- report the **theft** to **your** nearest Police station;
- obtain a crime reference number from the Police.

How we use your information / Privacy notice

You must read this Privacy Notice carefully as it explains how we use your personal information

In taking out this Insurance Policy with Wakam, **you** or **Cuvva** have supplied **us** with **your** personal information, and this Privacy Notice explains how **we** and **Cuvva** will use it. In this Privacy Notice, "**we**", "**us**" and "**our**" refers to Wakam.

When we say, "**you**" and "**your**" in this notice, **we** mean anyone whose personal information **we** and **Cuvva** may collect, including:

- Anyone seeking an insurance quote from **us** or whose details are provided during the quotation process

- Policyholders and anyone named on or covered by the **policy**
- Anyone who may benefit from or be directly involved in the **policy** or a claim, including claimants and witnesses.

Both **Cuvva** and Wakam are considered as Joint data controller. Cuvva's offices are located at 4th Floor, Old Sessions House, 23 Clerkenwell Green, London, EC1R 0NA. Wakam's offices are located at 18th & 19th floors, 100 Bishopsgate, London, EC2N 4AG.

Providing consent

When providing personal information about others, **you** confirm that **you** have the consent of these individuals to supply their personal information. **We** are unable to offer **you** any product or service unless **you** provide explicit consent for the collection and use of sensitive personal data as defined in data protection laws.

You have the right to withdraw consent at any time (see "**Your Rights**"). This may limit or terminate the contract of insurance that **you** originally entered into with **us**. Due to legal obligations with **road traffic laws** and regulatory requirements **we** may not be able to remove **your** personal information.

How we use your information

Your information includes personal details that **you** provided to **us** or **Cuvva**, which is then used in a number of ways to process **your** insurance application, administer **your policy** or any subsequent claim that **you** may make. The processing of the information **you** provide is necessary for the performance of the contract, including:

- Providing quotes;
- Maintaining and updating **your policy** record;
- Administering **your policy** including handling claims;
- Processing any claim that **you** or someone else makes;
- Understanding **our** customer's needs and requirements;
- Analysing and research of **our** products and services;
- Analysing the premium, and terms and conditions **we** offer where automated decision making applies;
- Performing credit checks and validating information provided to **us**;
- Dealing with complaints;
- Preventing financial crime to meet **our** legal obligations.

Where **we** process special categories of data (including data relating to health or criminal convictions), **we** will do this on the basis that it is necessary for the performance of **your** insurance contract and for reasons of substantial public interest.

Automated decision making, including profiling

We may use profiling and automated decision making, to assess insurance risks, detect fraud, and administer **your policy**. This helps **us** decide whether to offer **you** insurance, determine prices and validate claims. If **you** disagree with the outcome of an automated decision please contact support@cuvva.com.

What personal information we collect

We collect the following types of personal information about **you** so **we** can complete the activities explained in "**How we use your information**:"

- Basic personal details such as name, age, address and gender
- Family, lifestyle and social circumstances, such as marital status, dependants and employment type
- Financial details such as direct debit or payment card information
- Photographs and/or video to help **us** manage policies and assess claims
- Tracking and location information if it is relevant to **your policy** or claims and in some cases surveillance reports
- Identification checks and background information about **you** that **we** need to collect in order to assess the risk to be insured including previous claims information, data relating to **your** health and criminal convictions.

- Medical information if it is relevant to **your policy** or claim
- Accessibility details if **we** need to make reasonable adjustments to help
- Business activities if it is relevant to **your policy** or claim
- Credit history, credit score, sanctions and information received from various anti-fraud databases about **you**.

How we collect personal information

We may collect personal information from various sources including **you**, **your** representative, **your** employer or from publicly available sources, including information **you** have made public, for example on social media.

We also collect information from other persons or organisations, for example:

- Credit reference and/or fraud prevention agencies;
- Emergency services, law enforcement agencies, medical and legal practices;
- Insurance industry registers and databases used to detect and prevent insurance fraud, for example the Claims and Underwriting Exchange (CUE);
- Insurance investigators and claims service providers;
- Service providers who provide the service for **our** products;
- Other involved parties, for example claimants or witnesses.

Who do we share your information with

We may share **your** information with third parties, including **our** product and service suppliers, agents, or other insurers, reinsurers, parties involved in handling a claim, fraud prevention agencies and the police and government bodies if **we** believe that this is reasonably required for the prevention and detection of crime and fraud. This assists in keeping **your** premiums low.

We may also share **your** information with other companies within the group that administer policies on **our** behalf or prospective buyers or purchasers in the event Wakam or **Cuvva** wishes to sell all or part of its business.

We may pass **your** details and any information or documentation **you** provide to **us** to the recognised centralised insurance industry registers and databases, credit reference agencies, and policy and claims checking systems. Data may also be released to third parties if **we** are required to do so under the terms of a court order or for regulatory purposes or in the investigation and settlement of a claim or a complaint.

We will only share **your** information in compliance with data protection laws.

How long will we keep your information

We will only hold **your** information for as long as necessary to administer the **policy**, manage **our** business or in order to comply with legal or regulatory requirements. This will be in line with **our** data retention policy.

Transferring personal information outside the UK

Some of the organisations **we** share **your** personal information with may be located in the European Union (EU) where **your** personal information is protected by laws equivalent to those in the **UK**. If **we** have to transfer data to organisations in a third country outside the EU, **our** contracts with these parties require them to provide an equivalent level of protection for **your** personal information.

Your rights

You have the right to:

- Object to **us** using **your** personal information. **We** will either agree to stop using it or explain why **we** are unable to;
- Ask for a copy of the personal information **we** hold about **you**, subject to certain exemptions;
- Ask **us** to update or correct **your** personal information to keep it accurate;
- Ask **us** to delete **your** personal information from **our** records if it is no longer needed for the original purpose;
- Ask **us** to restrict the use of **your** personal information in certain circumstances;
- Ask for a copy of the personal information **you** provided to **us**, so you can use it for **your** own purposes;

- Ask **us**, at any time, to stop using **your** personal information, if using it is based only on **your** consent;
- Complain about how **we** handle **your** data (see 'Who to contact' below).

Who to contact

If **you** wish to exercise any of **your** rights, or have any queries about how **we** use **your** personal information, please contact support@cuvva.com

We will consider **your** request and either comply with it or explain why **we** are not able to. Please note, **we** may request evidence of **your** identity to process **your** request.

If **you** are not happy with any aspect of how **we** handle **your** data, **we** encourage **you** to come to **us** in the first instance but **you** are entitled to complain to the Information Commissioner's Office via its website, or by calling 0303 123 1113.

Important information

Motor Insurance Database - Continuous Insurance Enforcement (CIE)

Information relating to **your policy** will be added to the Motor Insurance Database ("**MID**") managed by the Motor Insurance Bureau ("**MIB**"). MID and the data stored on it may be used by certain statutory and/or authorised bodies including the Police, the DVLA, the DVLANI, the Insurance Fraud Bureau and other bodies permitted by law for purposes not limited to but including:

- Electronic Licensing
- Continuous Insurance Enforcement
- Law enforcement (prevention, detection, apprehension and or prosecution of offenders)
- The provision of government services and or other services aimed at reducing the level and incidence of uninsured driving.

If **you** are involved in a road traffic **accident** (either in the UK, EEA or certain other territories), insurers and/or the MIB may search the MID to obtain relevant information.

Persons (including his or her appointed representatives) pursuing a claim in respect of a road traffic **accident** (including citizens of other countries) may also obtain information which is held on the MID.

It is vital that the MID holds **your** correct registration number. If it is incorrectly shown on MID **you** are at risk of having **your** vehicle seized by the Police. **You** can check that **your** correct registration number details are shown on the MID at www.askmid.com.

Sharing information

Insurers pass on information to the Claims and Underwriting Exchange register, and the Motor Insurance Anti-Fraud and Theft Register, operated by MIB. The aim is to help **us** check information provided and also to prevent fraudulent claims. When **we** deal with **your** request for insurance or manage any claim that may arise, **we** may search the register(s).

When **you** tell **us** about an incident which may or may not give rise to a claim, **we** will pass information relating to it to the register(s). **You** can ask for more information about this. **You** should show this notice to anyone who has an interest in the vehicles insured under the policy.

Fraudulent claims

Fraudulent claims are a serious problem for insurers and any costs arising from such activity are inevitably passed on to honest policyholders. In order to protect **your** interests and the interests of the vast majority of **our** policyholders, **we** fully investigate all claims, and where fraud is detected **we** report to the authorities under the Proceeds of Crime Act ("**POCA**").

If false or inaccurate information is provided and fraud is suspected, details will be passed to fraud prevention agencies. **You** may also report information in respect of bogus/fraudulent claims to the Cheatline on 0800 422 0421. The Cheatline is manned 24 hours a day. Alternatively, fraud can be reported online to the Insurance Fraud Bureau (IFB) at www.insurancefraudbureau.org. All information is reported anonymously and will be treated in the strictest of confidence. The Cheatline is manned by experienced fraud investigators who may share the information with other interested parties such as the insurer concerned (if known). Savings obtained from information provided to the Cheatline will help reduce insurance premiums. More information can be provided if requested.

Further information on how fraud will effect **your policy** is set out in General Condition 3 below.

Financial Services Compensation Scheme (FSCS)

Wakam is covered by the Financial Services Compensation Scheme (FSCS). **You** may be entitled to compensation from the scheme if **we** are unable to meet **our** obligations. Further information about compensation scheme arrangements is available from the FSCS at www.fscs.org.uk.

Complaints procedure

Cuvva aims to provide a standard of service that will leave no cause for complaint.

However if **you** are dissatisfied with the service **we** have provided please chat to **us** in the Cuvva app.

Alternatively **you** may e-mail **your** complaint to support@cuvva.com.

If **you** remain dissatisfied after contacting **Cuvva** you may also contact **us** directly at: complaints.uk@wakam.com.

We or **Cuvva** will endeavour to investigate **your** complaint fully and resolve immediately. If **we** cannot resolve **your** complaint by the next working day **we** will acknowledge **your** complaint within five working days of receipt, and do **our** best to resolve the problem within eight weeks by sending **you** a final response.

Should **you** remain dissatisfied having received **your** final response, **you** may be able to take **your** complaint to the Financial Ombudsman Service (FOS). Their address is The Financial Ombudsman Service, Exchange Tower, London, E14 9SR. **You** may also find their details at www.financial-ombudsman.org.uk The FOS is an independent service in the UK for settling disputes between consumers and financial services businesses.

Definitions

The words and phrases below always mean the same thing and are shown in **bold** throughout.

Accessories

Parts and products designed to be fitted to **your vehicle**. This includes its safety equipment and the standard tool kit provided by the manufacturer.

Accident

Any event which occurs during the **period of insurance** involving **your vehicle** that is unintentional, unforeseen and external to the victim or to **your vehicle**, constituting the cause of bodily injury, material or immaterial damage.

Certificate of motor insurance/Certificate

The document that proves **your** insurance, that **you** legally need to have. It describes **your vehicle**, who can drive it and what it can be used for.

Cuvva

Insurance intermediary, Cuvva Limited is a company registered in England and Wales with company no: 08907985, having its registered address at 4th Floor, Old Sessions House, 23 Clerkenwell Green, London, EC1R 0NA

Endorsement

A change to the terms of **your policy**. You can find this in **your schedule**.

Excess

The amount **you** must pay towards a claim. You can find this in **your schedule**.

Fire

Fire, lightning, explosion or self-ignition (where the vehicle spontaneously combusts).

Market value

The cost of replacing **your vehicle** with one of similar type, age, mileage and condition at the time of loss. **We** will work this out using vehicle value guides (including Glasses Guide), engineers and other useful sources.

Period of insurance

The period of time this policy covers. You can find this in **your certificate of motor insurance** and **Schedule**.

Personal belongings

Property **you** own, wear or use in everyday life.

Policy

This document together with **your schedule, your certificate of motor insurance, your statement of fact** and **your** application form.

Road Traffic Acts/Road traffic law

Laws and regulations governing the driving or use of any motor vehicle in England, Scotland, Wales, Northern Ireland, the Isle of Man and the Channel Islands.

Schedule

The document summarising **your** cover.

Statement of fact

The information **you've** given to **us** for the purpose of buying this **policy**, as set out in **your schedule**.

Territorial limits

England, Scotland, Wales, Northern Ireland, the Isle of Man and the Channel Islands (including transit by sea, air and rail in and between these places).

Theft

Theft or attempted theft that's been reported to the police.

United Kingdom/UK

England, Scotland, Wales and Northern Ireland.

We/us/our

Wakam UK Limited is a company registered in England and Wales with company number 14778827, having its registered office at 18th & 19th Floors 100 Bishopsgate, London, United Kingdom, EC2N 4AG.

You/your

The Policyholder named in **your schedule**.

Your vehicle

The vehicle described in **your schedule**, its **accessories** and parts.

Policy cover

Your policy provides comprehensive cover within the **territorial limits** and includes the cover set out in Sections 1 to 6 below.

In return for the payment of the payment set out in the **schedule we** agree to insure **you** subject to the terms and conditions set out in the **policy**. Each section says what's covered and what's not covered.

The General Conditions and General Exclusions set out below apply to all sections.

Section 1 - Third party liability

Cover

We'll cover **your** legal liability for an **accident** caused by, or arising out of the use of:

- **your vehicle**; or
- a trailer, caravan or vehicle **you** are towing

if **you**:

- injure or kill someone; or
- damage their vehicle or property.

Cover extends to:

- anyone:
 - **your certificate** allows to drive with **your** permission;
 - using (but not driving) **your vehicle** for social, domestic and pleasure purposes with **your** permission;
 - in, or getting into or out of, **your vehicle**;
- **your** employer or business partner, as long as **your certificate** allows business use and they don't own, lease or hire **your vehicle**;
- the personal representative of anyone covered if they die. If any person covered by this **policy** should die, **we**'ll deal with a claim made against their estate, as long as the claim is covered by this **policy**.

Driving other cars

You're not covered for Driving Other Cars under this **policy**.

Legal costs

We'll pay reasonable legal costs relating to liability of any person covered by this **policy** including:

- representation at a coroner's inquest, fatal accident inquiry or court of summary jurisdiction;
- defending a charge of manslaughter or causing death by reckless or dangerous driving

if **we** agree this in writing.

Unless **we** agree in writing, **we** won't pay legal costs:

- covered by another policy;
- for any appeal unless the solicitor or barrister **we** appoint considers that there is a more than 60% chance of success;
- if the driver was under the influence of drink or drugs at the time of the **accident**.

Emergency medical treatment

We'll pay for emergency medical treatment needed under the **Road Traffic Acts** following an **accident** involving **your vehicle**.

Not covered

We won't pay:

- for death or injury:
 - to the driver of **your vehicle** or anyone working with or for them unless required by the **Road Traffic Acts** or in accordance with the Personal Accident Cover set out in Section 5;
- for loss or damage:
 - to property, or injury to animals, owned by or in the care of **you** or the person claiming under this section;
 - to **your vehicle** or any trailer, caravan or vehicle being towed;
 - by pollution or contamination unless required by the **Road Traffic Acts**;
- for death, injury, loss or damage:
 - not involving the insured vehicle
 - if the person claiming knew the driver didn't hold a valid licence to drive **your vehicle**;
 - arising as a result of 'road rage' or a deliberate act by **you** or any person driving **your vehicle** with **your** permission;
 - caused by the loading or unloading of **your vehicle** which involves the use of any crane, hoist, lift or similar appliance;
 - caused or arising beyond the limits of any carriageway or thoroughfare in connection with the loading or unloading of **your vehicle**;

unless required by the **Road Traffic Acts**;

- for loss or damage relating to the costs or expenses of defending criminal proceedings where the insured person driving either:
 - was under the influence of drink or drugs at the time of the **accident**; or
 - is charged with leaving the scene of the **accident**. or costs or expenses relating to the defence of criminal proceedings;
- any amount above £2,000,000 for a claim or series of claims arising out of one cause in respect of property damage, loss of use or other indirect loss, including legal costs and expenses.

Section 2 - Accidental damage, fire and theft

Cover

If **your vehicle** is damaged in an **accident**, **fire**, or attempted **theft**, or if it's stolen, **we'll** decide whether **we** pay:

- to repair it; or
- its **market value** or the amount on **your** receipt, whichever is the lower, if it's damaged beyond economical repair (If this happens, the vehicle will then belong to **us**); or
- the cash value of any lost or stolen **accessory** or part in or on **your vehicle**; and
- reasonable costs to:
 - get **your vehicle** to **our** approved repairer if it can't be driven;
 - return it to **your UK** home address after repair.

Repairs to **your vehicle** will be directed to **our** approved repairer wherever possible. If **you** would prefer to take **your vehicle** elsewhere, **you** must provide **us** with an estimate and wait for **us** to approve it before repairs are commenced.

If **your vehicle** is owned by someone else or **you** still owe money for it under a hire purchase agreement, **we'll** pay the legal owner unless they agree in writing **we** can pay **you**.

Audio and communications equipment

We'll pay for loss of or damage to permanently fitted audio, navigation and communications equipment up to the following amounts (after **we've** taken off the **excess**).

Equipment fitted as standard by the manufacturer:	Current value
Equipment not fitted as standard by the manufacturer:	£500

New replacement vehicle

If **your vehicle** is less than 12 months old, **we'll** replace it with a new vehicle of the same make and model (or the nearest available vehicle) if:

- it's stolen and not found within 30 days; or
- repair costs exceed 60% of its list price (including taxes) when **you** bought it.

As long as:

- **your vehicle** is owned by and was first registered to **you** or **your** spouse or civil partner (this excludes vehicles leased or on contract hire);
- any hire purchase company involved agrees we can replace it;
- the recorded mileage didn't exceed 10,000 at the time of the incident.

If a new replacement isn't available, **we'll** pay **market value** and **your vehicle** will then belong to **us**.

Parts

We may use parts that are not supplied by the vehicle manufacturer. **We** won't pay more than the last list price for any part that can't be bought new anymore.

Unless **we** agree otherwise in writing, **we** won't pay for the replacement or repair of any part that wasn't fitted or installed in **your vehicle's** original specification when it was first registered. However, this exclusion won't apply if **your vehicle** has been modified to aid a medical condition or disability.

Not covered

We won't pay:

1. more than £60,000 to repair or replace **your vehicle**;
2. for loss or damage:
 - if **your certificate** doesn't cover the person driving (unless **you** report them to the police for taking **your vehicle** without permission, and they're charged);
 - by **theft** unless:
 - all doors were locked and all windows and openings were closed; and
 - all keys or locking devices were removed; and
 - any security device, tracking device, or alarm fitted to **your vehicle** was set properly;
 - solely involving broken glass in **your vehicle's** windscreen or windows;
 - arising as a result of 'road rage' or a deliberate act by **you** or any person driving **your vehicle** with **your** permission;
 - by deception, fraud, repossession, counterfeit or other unauthorised payment method;
 - caused by the wrong type of fuel;
 - to tyres caused by braking, punctures, cuts or bursts;
 - to **your vehicle's** contents or goods, tools or samples carried in connection with any trade or business;
 - to any trailer, caravan or vehicle being towed (or its contents);
 - if the driver of **your vehicle** was, at the time of the **accident**, under the influence of alcohol or drugs or any medication, even prescribed, which is clearly incompatible with driving a vehicle;
3. for:
 - the **excess**;
 - depreciation, wear and tear;
 - loss of value following repair;
 - mechanical, electrical, electronic or computer faults, failures, breakdowns, breakages or malfunctions;
 - loss of use, earnings or other indirect losses.

Section 3 - Personal belongings and child seats

Cover

We'll pay up to:

- £100 for **personal belongings** in **your vehicle** if lost or damaged in an **accident** or by **fire** or **theft**;
- £150 towards replacing child seats correctly fitted to **your vehicle** at the time of an **accident**, even if there's no actual damage.

We will need to see proof of purchase.

Not covered

We won't pay for:

- money, credit and debit cards, vouchers, jewellery, stamps, tickets, documents or securities;
- anything related to a trade or business, like goods, tools and samples;
- audio, electrical and communications equipment other than for permanently fitted equipment as set out in Section 2;
- property insured under another policy;
- depreciation, wear and tear;
- property kept in a convertible vehicle anywhere other than in its locked boot;
- any claim under this section if the driver of **your vehicle** was, at the time of the **accident**, under the influence of alcohol or drugs or any medication, even prescribed, which is clearly incompatible with driving a vehicle.

Section 4 - Medical expenses

Cover

If **you**, the driver or a passenger in **your vehicle** is injured in an **accident** we'll pay up to £150 medical expenses each.

Not covered

We won't pay if:

- there's cover under another policy;
- the driver of **your vehicle** was, at the time of the **accident**, under the influence of alcohol or drugs or any medication, even prescribed, which is clearly incompatible with driving a vehicle.

Section 5 - Personal accident

Cover

If **you**, **your** spouse or **your** civil partner die or are injured as a direct result of an **accident** in **your vehicle**, we'll pay **you** or **your** legal representative the following:

Type of injury

Death	£5,000
The loss of a limb	£2,500
Total loss of sight in one or both eyes	£2,500

These amounts are not cumulative, the most we'll pay in any one calendar year is £2,500 except in the case of death in which case the limit is £5,000

If there's cover under another policy with **us**, we'll only pay under one policy.

Not covered

We won't pay if:

- the cause was suicide, attempted suicide or intentional;
- the person wasn't wearing a seatbelt;
- the driver of **your vehicle** was, at the time of the **accident**, under the influence of alcohol or drugs or any medication, even prescribed, which is clearly incompatible with driving a vehicle.

Section 6 - Foreign use

Cover

Compulsory insurance

This **policy** provides the minimum cover the law says **you** need to use **your vehicle** in any country:

- in the EU;
- meeting the rules set out by Article 7(2) of the European Community Directive on Insurance of Civil Liberties arising from the use of motor vehicles (Directive 2009/103/EC).

If the law says **you** need cover that's less than the cover needed, as set out by **UK** law, **UK** cover will apply.

Green Cards

If the law of any country requires **you** to have a Green Card, **You** must ask **us** for one at least seven working days prior to travel.

General conditions

1. Providing accurate and complete information

You must take reasonable care to provide accurate and complete answers to all of the questions **we** ask.

If **you** fail to do so, **we** may:

- change **your** premium, **excess** or cover; and/or
- refuse to pay all or part of a claim; or
- cancel or void **your policy**.

If **we** void **your policy**, **we** may decide not to refund **your** premium.

2. If You have an accident or need to claim

You must:

- report any incident to **us** as soon as reasonably possible;
- give **us** any help **we** need;
- send all correspondence (including writs and summons) immediately to **us** without replying;
- tell **us** about any prosecution, coroner's inquest or fatal accident inquiry;
- report **theft**, vandalism or malicious damage to the police;
- not admit liability or negotiate payment.

We may:

- take up, defend or settle any claim in **your** name for **our** benefit;
- determine the payment and how **we** handle any proceedings;
- take off any premium **you** owe from the cost of replacing **your vehicle**.

3. Fraud and misrepresentation of risk

When applying for this insurance, and while **you're** insured with **us**, if **you** or anyone acting for **you**:

- give **us** any incorrect or misleading information; or
- mislead **us** deliberately to get insurance cover, a cheaper price or better terms; or
- give **us** fake or altered documents; or
- make a fraudulent bank or card payment to **Cuvva**

we may:

- cancel or void **your policy**. If **we** void **your policy** it will be treated as if it never existed and **we** may not refund any payments **you've** made;
- reject any claim or reduce the amount of payment to be made;
- agree to correct **your policy** details, charge any extra premium and apply the right terms.

If **we** establish that there is any element of fraud, **we** will:

- not return any premiums that **you've** paid to **us**;
- recover any costs **we've** incurred from **you**;
- help the authorities (including the police) find and prosecute those involved;
- report it under the Proceeds of Crime Act.

If any claim is fraudulent in any way, or if **you** or anyone acting for **you**:

- inflates or exaggerates the claim, or
- give **us** fake or altered documents, or
- doesn't provide complete or accurate information

then **we** won't make a payment, all cover under **your policy** will end and **you'll** lose any premiums that **you've** paid.

We fully co-operate with the authorities in investigating and prosecuting anyone involved in fraud.

4. Vehicle maintenance

You must take reasonable steps to protect **your vehicle** and its contents and keep it fit to be on the road.

We can examine **your vehicle** if necessary.

5. Cancellation

You can cancel this **policy** by contacting **us**, or by emailing **Cuvva** at support@cuvva.com.

Cancellation will take effect from the date **we** agree and the Motor Insurance Database will be updated.

You won't be entitled to a premium refund.

We or **Cuvva** can cancel this **policy** by sending seven days' written notice to **your** last known address or to the email address registered on **your** Cuvva account. **We** or **Cuvva** will only do this where we have a valid reason to do so. Valid reasons may include but are not limited to:

- a change in the risk occurring which means **we** can no longer provide **you** with insurance cover
- non-cooperation or failure to supply information to **us**
- threatening or abusive behaviour by **you** to **us**.

We'll then allow a refund of **your** payment for the time left on the **policy** as long as no claims have been made or are likely to be made.

6. Payments made outside policy terms

If the law says **we** have to make a payment **we** wouldn't otherwise have made, **we** can ask **you** to repay **us**.

7. Parties to this contract

This contract is between **you** and **us**. Other people can't enforce it except for their rights under **road traffic law**.

The Contracts (Rights of Third Parties) Act 1999 doesn't give others additional rights under **your policy**.

8. Choice of law

The law in the part of the **UK** where **you** live governs this **policy** and will be subject to the exclusive jurisdiction of the courts in that jurisdiction, unless agreed otherwise in writing before cover starts.

9. Changes to your policy cover or details

As this is a short-term **policy**, it's not possible to make any changes or alterations once it's been taken out.

10. Car sharing

Your policy covers **you** to drive with paying passengers for social or similar purposes, as long as:

- **you** don't carry more passengers than **your vehicle** was made to carry; (as set out in the manufacturer's specification)
- **you're** not running a public hire (taxi) or private hire business or similar;
- the total payment **you** get for any journey doesn't include any profit.

General exclusions

General Exclusions apply in addition to the exclusions in each section (unless required by the Road Traffic Acts).

1. Driving and use of your vehicle

Your policy *does not* provide cover while **your vehicle** is being:

- driven by or in the charge of any person (including **you**) who:
 - isn't entitled to drive by **your certificate**, except in the case of a motor trader who has it for maintenance or repair and who is not covered by another policy for the loss, damage or liability; or
 - **you** know is:
 - a provisional licence holder who isn't accompanied by someone aged 21 or over who's held a full UK or EU driving licence for at least three years;
 - disqualified from driving or has never held a licence to drive; or
 - prevented from obtaining a licence (unless driving when one isn't legally needed);
- driven:
 - outside of the terms of the driver's licence or without a valid licence;
 - in an unsafe, unroadworthy or damaged condition;
 - without a valid MOT certificate when the law says **you** need one; or
 - with more passengers than the vehicle was made to carry (as set out in the manufacturer's specification);
- used:
 - for any purpose not allowed by **your certificate**;
 - for any purpose in connection with the motor trade or for hire and reward purposes;
 - when declared SORN (Statutory Off Road Notification) unless that use was permitted by the SORN Regulations;
 - to carry or tow an unsafe or insecure load: biologically hazardous materials, flammable, explosive, corrosive or oxidizing substances, dynamite, or similar explosives;
 - in that part of any airport, aerodrome, airfield or military base provided for take-off, landing and movement of aircraft on the ground, and aircraft parking aprons, associated service roads, refuelling areas and ground equipment parking areas;
 - for racing, whether formally or informally against another motorist, rallying, speed testing, competitions, speed trials, or on a motor sport circuit, racetrack, disused airfield or de-restricted toll road (including Nürburgring); or
 - for any deliberate, reckless or criminal act (including 'road rage').

2. Imported vehicle

Your policy *does not* provide cover if **your vehicle** was manufactured outside the **UK**, unless imported through the manufacturer's standard import arrangements.

3. Other insurance

Your policy *does not* provide cover for liability, loss or damage covered by another policy.

4. Confiscation of your vehicle

Your policy *does not* provide cover:

- for loss or damage resulting from empowerment or confiscation of **your vehicle** by Customs and Excise, the police or other government authority;
- to release a motor vehicle that isn't covered by this **policy** if it was seized by or on behalf of any government or public authority.

5. War and hostilities

Your policy *does not* provide cover for war, invasion, act of foreign enemy, act of terrorism (as defined by the Terrorism Act 2000 and any subsequent amendments and/or similar acts), hostilities (whether war is declared or not), civil war, revolution, insurrection, rebellion, coup, military or usurped power.

6. Earthquake, radioactivity, pressure waves, dangerous goods or riot

Your policy *does not* provide cover for direct or indirect loss, damage, worsening of damage or liability caused by or arising from:

- earthquake
- weapons or devices designed to explode by modifying the structure of the atom's nucleus;
- any source of ionising radiation (in particular any radioisotope) intended for use outside a nuclear installation and for which the insured or any person for whose ownership, custody or use he is responsible or for whom he may be held liable by reason of its design, manufacture or packaging.
- pressure waves caused by aircraft and other flying objects;
- carrying dangerous substances or goods for which **you** need a police licence;
- riot or civil commotion occurring in Northern Ireland or outside the **territorial limits**.

7. Contracts

Your policy *does not* provide cover for any claim as a result of an agreement or contract unless **we** would have been liable anyway.

8. Proceedings outside the territorial limits

Your policy *does not* provide cover for proceedings against **you** or judgements in courts outside the **territorial limits**, unless arising under the Foreign Use section.

Driving abroad

The statement below is repeated in French, German, Italian and Spanish.

The certificate of motor insurance, and motor insurance policy to which it relates applies in respect of incidents occurring in member countries of the European Union. Cover also applies in other countries which have satisfied the requirements of the Commission of European Union as follows: Andorra, Iceland, Liechtenstein, Norway, Serbia and Switzerland.

The certificate of motor insurance and the motor insurance policy to which it relates applies to any trailer whilst being towed by the motor vehicle shown on the certificate of motor insurance.

Le Certificat et la police d'assurance qui s'y rattache s'appliquent au regard d'incidents ayant lieu dans les pays membres de l'Union Européenne. La couverture s'acquiert également dans d'autres pays qui ont rempli les conditions de la Commission de l'Union Européenne, c'est-à-dire: Andorre, la Islande, la Norvège, la Serbie, la Liechtenstein, et la Suisse.

Les Certificat et la police d'assurance qui s'y rattache s'appliquent à toute remorque étant tractée par le véhicule dont il est fait mention dans le Certificat.

Das Zertifikat und die diesbezügliche Versicherungspolice gewähren Versicherungsschutz für Versicherungsfälle in den Mitgliedsländern der EG. Der Geltungsbereich erstreckt sich ferner auf solche anderen Länder, die Erfordernisse der EG-Kommission erfüllt haben, nämlich: Andorra, Norwegen, Serbien, Liechtenstein und die Schweiz.

Das Zertifikat und die diesbezüglich Versicherungspolice gewähren Deckung für Anhänger des auf dem Zertifikat angegebenen Fahrzeugs.

Il certificato e la polizza di assicurazione a cui fa riferimento si applicano per gli incidenti che occorrono nei paesi della Unione Europea. L'assicurazione si applica anche per gli altri paesi che hanno soddisfatto le esigenze delle Commissioni della Unione Europea, cioè: Islanda, Norvegia, Liechtenstein, Serbia e Svizzera.

Il certificato e la polizza di assicurazione a cui si riferisce, si applicano a qualsiasi rimorchio che venga trainato dal veicolo indicato sul certificato.

El Certificado y la Póliza de Seguro correspondiente, cubren los accidentes que ocurran en cualquiera de los países miembros de la Unión Europea. Asimismo cubren los accidentes que ocurran en los siguientes países que reúnen las condiciones exigidas por la Comisión de la Unión Europea: Andorra, Islandia, Noruega, Liechtenstein, Serbia y Suiza.

El Certificado y la Póliza de seguro correspondiente cubren a cualquier remolque mientras vaya arrastrado por en el Certificado.